

CODE ON **R**IGHT **E**MPLOYEE **E**THICS and **D**ISCIPLINE



ENERGIZED BY **MERALCO**

**MERALCO INDUSTRIAL
ENGINEERING SERVICES
CORPORATION**

Message of the President



To our dear employees:

MIESCOR has always been committed to providing reliable services to its customers, strengthened by our values -- **Integrity**, **Accountability**, and **Malasakit**, which are expected to be inherent in every MIESCOR employee.

I AM MIESCOR

INTEGRITY • ACCOUNTABILITY • MALASAKIT

These values help employees develop the right conduct and proper behavior which in return will maintain good execution and corporate governance, especially as we continuously grow as a company.

Hence, to sustain this is the establishment of the Code on Right Employee Ethics and Discipline (**CREED**). Our CREED not only sets clear ethical and discipline standards but also explains how we should conduct ourselves when acting on behalf of the company.

As I believe that every member of our Company, regardless of position, shares the same goals and responsibility in promoting a safe and ethical work environment, I urge everyone to review and understand the Code on Right Employee Ethics & Discipline (CREED) handbook carefully and together do our part in ensuring that these standards are practiced and followed.

Thank you for all your efforts to understand and uphold the high standards that make MIESCOR a reputable Company, and the service provider of choice. Together, let's ensure that ethics and integrity are never compromised at our company as we embody and uphold the **I AM MIESCOR** identity.



RONNIE L. APEROCHO
President & CEO

Table of Contents

Section 1: Policy.....	2
Section 2: Definitions.....	2
Section 3: Attendance and Punctuality.....	3
Section 4: Work Performance and Standard.....	5
Section 5: Employee Behavior.....	6
Section 6: Confidentiality of Work and Information.....	9
Section 7: Conflict of Interest.....	9
Section 8: Use of Company Property.....	10
Section 9: Hiring and Assignment of Relatives.....	11
Section 10: Voluntary Separation.....	11
Section 11: General Provision.....	11
Section 12: Compliance and Enforcement.....	13
Section 13: Effectivity.....	13
Annex A: Penalties for Damages or Injuries.....	13
Undertaking.....	14

Section One (1)

The Policy

The Meralco Industrial Engineering Services Corporation (MIESCOR) considers the maintenance of discipline as a matter of fundamental importance. This Code shall apply to all employees in the active payroll of MIESCOR. Thus, making the Code comprehensive, it can't cover every imaginable situation and must use our good judgment.

This Code contains the corrective aspect of an employee's conduct correlated with the Safety Code, Information Security Policies and MIESCOR Code of Business Ethics. It stresses the safeguard of our confidential information that concludes the seriousness of our obligation to always maintain our sanctity and will align us to our corporate values that will adhere to our company goals.

And more importantly, the responsibility of Office Managers and Team Leads/ Supervisors to disseminate and uphold the company policies, procedures, rules, and regulations to employees under their supervision.

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Section Two (2)

The Definitions

The following words and phrases, as used in this Code, shall have the meaning indicated unless a different one is plainly denoted in the text.

1. **Company** — means the Meralco Industrial Engineering Services Corporation (MIESCOR).
2. **Company Premises** — mean all landholdings and buildings including field office and all other properties, used, owned, or rented by MIESCOR. It also covers the working area occupied by employees assigned in the field including Company vehicles and places where official company events are being held.
3. **Company Property** — means all things which are used, owned, or rented by, or licensed to, MIESCOR, including documents, information, programs, or intellectual creations of its employees created during employment as a result of the performance of their assigned duties.
4. **Deadly Weapons** — mean any firearm, whether loaded or unloaded, or any device designed as a weapon and capable of producing death or serious bodily injury, or any other instrument which, in the manner in which it is used or intended to be used, is calculated or likely to produce death or serious bodily injury.
5. **Emergency Cases** — mean unforeseen circumstances such as fire, typhoon, earthquake, sickness, giving birth, death or any accident involving either the employee personally or immediate members of his family which shall include the lawful spouse, the children and parents.

6. **Employee** — means all persons, including temporary and probationary employees, under the employ and in the active payroll of MIESCOR.
7. **Firearm** — includes rifles, muskets, carbines, shotguns, revolvers, pistols and all other deadly weapons from which a bullet, ball, shot, shell or other missile may be discharged by means of gunpowder or other explosives. The term also includes air and airsoft rifles and pistols. The barrel of any firearm or any replica of the above enumeration shall be considered a firearm.
8. **Narcotics** — mean drugs that produce a condition of insensibility and melancholy dullness of mind with delusions and may be habit forming. Included in this definition are marijuana, shabu, ecstasy, hashish, codeine, barbiturates, benzodiazepines and their derivatives, and all preparations made from them or any of them. Also included are those classified as “dangerous drugs” which are either “prohibited” or “regulated” within the meaning of prevailing laws.
9. **Profane Language** — means words, phrases or signs uttered or done with malice, irreverence, or contempt.
10. **Pornographic Materials** — mean any obscene or licentious film, drawing, cut-out, writing, picture, computer image, graphic, video and audio clips and the like, indicating the private parts of the human anatomy.

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Section Three (3)

Attendance and Punctuality

Every employee is required to perform his duties in the Company regularly and punctually. He shall avoid being absent or tardy in reporting for work.

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
1. Tardiness for five (5) times, or an accumulated tardiness of one hundred (100) minutes, whichever comes first, within any thirty (30)-day period shall constitute excessive tardiness and shall be considered as a single and separate violation. Five (5) minutes at most is allowed as a grace period for latecomers.	Reprimand	3-day suspension	5-day suspension	10-day suspension

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
2. Unauthorized and unexcused absences from work for one-half (1/2) day or at most (2) days shall be considered as simple absences.	Reprimand	5-day suspension	10-day suspension	15 calendar day suspension
3. In cases where the unauthorized and unexcused absence from work extends for more than two (2) but not more than five (5) consecutive working days, these shall be considered as multiple absences.	5-day suspension	10-day suspension	15 calendar day suspension	Dismissal
4. Unauthorized and unexcused absences from work that exceed five (5) consecutive working days shall constitute excessive absences.	Dismissal			
5. Failure to time-in and time-out in the assigned time capture device two (2) times within a 30-day period.	Reprimand	3-day suspension	5-day suspension	10-day suspension
6. Going on sick leave without having first personally secured previous authorization from a Company doctor or Company retained physician and failing to notify his supervisor of his absence due to illness within 24-hours from the first date of such leave.	1-day suspension	3-day suspension	5-day suspension	15-day suspension
7. Extending the original period of sick leave previously authorized without prior authorization or justifiable reason.	The same penalties provided for multiple absence or excessive absences.			
8. Non-conformity with the company's sick leave policy, including unjustified refusal to undergo physical examination or diagnostic procedures as required.	Reprimand	1-day suspension	3-day suspension	5-day suspension
9. Leaving house confinement while on sick leave against the express orders of the Company physician or Company-retained physician.	1-day suspension	3-day suspension	5-day suspension	15-day suspension

Section Four (4)

Work Performance and Standard

Every employee shall conduct himself in a manner consistent with decorum and good discipline. The following acts shall constitute violation of this section:

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
1. Acts or omissions constituting negligence or carelessness causing loss, damage or prejudice to the Company or resulting in death or injury to persons.	Reprimand to dismissal, depending upon the gravity of the offense. (For damage to property or injury to persons, refer to ANNEX "A".)			
2. Leaving work area, loafing, loitering, sleeping, or performing personal matters while on duty.	Reprimand	1-day suspension	3-day suspension	5-day suspension
3. Failure to wear prescribed uniform and/or to properly display/ present company I.D. while on duty or within company premises.	Reprimand	1-day suspension	3-day suspension	5-day suspension
4. Failure to disclose or update company required information within the prescribed period or within thirty (30) days from effective date of such change or status.	Reprimand	1-day suspension	3-day suspension	5-day suspension
5. Failure on the part of an employee who has knowledge of any violation of this Code and/or any Company rule or policy to take steps to prevent and/or report the same.	Reprimand to dismissal, depending upon the prejudice caused to the company.			
6. Gross and habitual neglect by the employee of his duties.	Dismissal			

Section Five (5)

Employee Behavior

Every employee shall conduct himself in a manner consistent with decorum and good discipline. The following acts shall constitute violation of this section:

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
1. Engaging another employee or other persons in a fight or prodding or goading another employee or person to engage in a fight during working time and/or within company premises.	5-day suspension	10-day suspension	15 calendar days suspension	Dismissal
2. Using abusive, threatening, or profane language or showing gross disrespect to any person during working time and/or within company premises.	Reprimand	1-day Suspension	3-day Suspension	5-day Suspension
3. Planting evidence or imputing a false offense or discreditable act against another employee.	30 calendar days Suspension or Dismissal depending upon the prejudice caused.			
4. Harassing or retaliating against a whistle blower or witness.	30 calendar days suspension	Dismissal		
5. Immoral conduct, lewd and/or inappropriate advances, not falling under sexual harassment, during working time and/or within company premises or during a company-sanctioned event.	Suspension or dismissal, depending upon the gravity of the offense.			
6. Sexual harassment, as defined by law, committed in a working, educational or training environment by one with influence, authority, or moral ascendancy against another during working time and/or within company premises or during company-sanctioned event.	Suspension or dismissal, depending upon the gravity of the offense.			
7. Exhibiting or distributing pornographic materials during working time and/or within company premises or during a company-sanctioned event.	Suspension or dismissal, depending upon the gravity of the offense.			
8. Vandalism, deliberate destruction or damage to Company property regardless of place or time.	Two degrees higher than the penalties in Annex A.			

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
9. Assaulting or intentionally causing physical injuries to another person committed during working time and/or within company premises.	30 calendar days Suspension to Dismissal, depending upon the gravity of the offense.			
10. Possession or use of firearms, deadly weapons, or hazardous materials within Company premises or during working time.	30 calendar days suspension	Dismissal		
11. Drinking of alcoholic beverages and/or performing work under the influence of alcoholic beverages during working time or on Company premises, except on Company-authorized occasions or areas.	10-day suspension	15-day suspension	Dismissal	
12. Entering company premises and/or reporting for work under the influence of liquor.	Suspension to dismissal, depending upon the gravity of the offense.			
13. Unfitness for work as a result of excessive of alcoholic beverages.	5-day suspension	15-day suspension	Dismissal	
14. Participating in any illegal narcotic or drug transaction such as pushing, possessing, using, or causing to be brought or used, narcotic drugs into Company premises, except when such drugs take the form of medicine prescribed by a physician.	Dismissal			
15. Smoking in non-designated areas.	1-day suspension	3-day suspension	5-day suspension	15 calendar days suspension
16. Refusal to submit to reasonable inspection conducted within Company premises by authorized Company personnel.	1-day suspension	3-day suspension	15 calendar day suspension	30 calendar days suspension
17. Violation of the Company's Solicitation and Gift Policy.	Reprimand to dismissal, depending upon the gravity of the offense			
18. Soliciting or receiving money, gift, share, benefits or favor from any person, or through the mediation of another as a condition for the performance of one's duty or to perform an act prejudicial to the Company.	Dismissal			
19. Willful disobedience by the employee of the lawful orders of his superior in connection with his work.	Dismissal			
20. Misappropriating, or withholding, Company funds.	Dismissal			

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
21. Directly or indirectly tampering with electric meters or metering installations, introducing unauthorized service connections, or installing any device and/or means of electric pilferage or irregular electric consumption.	Dismissal			
22. Theft of property belonging to another person committed during working time or on company premises or company property regardless of place or time.	Dismissal			
23. Falsifying timesheets or time records/data; making or allowing erroneous of time data; swiping or scanning the identification card (ID) of another. The employee who induced, allowed or benefited from the foregoing act shall suffer the same penalty.	Dismissal			
24. Knowingly giving false or misleading information/documents or concealing material facts which cause or tend to cause prejudice to the company such as disclosure requirements of the company, application for employment, benefits and the like.	Dismissal			
25. Knowingly giving untruthful statements or concealing material facts in an investigation conducted by authorized representatives of the Company.	Dismissal			
26. Commission of a crime or offense by the employee against the person of his employer or his duly authorized representatives.	Dismissal			
27. Forming, operating or attempting to form or operate within the company, any credit union, loan association, or any other similar organization.	The employee will be made to desist or, if an association to disband, otherwise he (they) will be dismissed.			
28. Intentionally introducing computer viruses and/ or unauthorized deleting/ altering applicable systems or programs.	Suspension to dismissal, depending upon the gravity of the offense.			
29. Violation of the Social Media Policy.	Reprimand to dismissal, depending upon the gravity of the offense.			
30. Violation of safety rules, regulations and general safety practices promulgated by the company.	Penalties shall be covered by the Company Safety Handbook			
31. Unauthorized representation and/ or defamation that will affect Company's identity.	Suspension to dismissal, depending upon the gravity of the offense.			
32. Any improper act, omission, conduct or behavior analogous to the provisions of this rule and prejudicial to the interests of the Company.	Reprimand to dismissal, depending upon the gravity of the offense.			

Section Six (6)

Confidentiality of Work and Information

The following acts shall constitute violation of this section:

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
1. Hacking or cracking, or unauthorized access, use, removal, publication, concealment, importation, deletion, alteration, copying, reproduction, modification, storage, uploading or downloading documents, information and/ or programs which may be prejudicial to the Company or otherwise infringes upon intellectual property or data privacy rights.	Suspension to dismissal, depending upon the gravity of the offense.			
2. Without proper authority, revealing, releasing, transferring, or divulging confidential information or data to individuals other than authorized persons.	Suspension to dismissal, depending upon the gravity of the offense.			
3. Fraud or willful breach by the employee of the trust reposed in him by his employer or duly authorized representative.	Dismissal			

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Section Seven (7)

Conflict of Interest

The following acts shall constitute violation of this section:

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
1. Having any participation or involvement, direct or indirect, in any transaction involving any person, firm, corporation or any business enterprises with which the Company, directly or indirectly, has commercial relationship, where such participation or involvement is improper or undesirable in the interest of the Company.	Suspension to dismissal, depending upon the gravity of the offense.			
2. Trading of stocks covered by the Black Out Policy.	Suspension to dismissal, depending upon the gravity of the offense.			

Section Eight (8)

Use of Company Property

The following acts shall constitute violation of this section:

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
1. Hitchhiking in Company trucks, pick-ups, vans, jeeps and similar operating vehicles except with the previous authority of the Office Manager to which the vehicle is assigned. In such cases, the employee who allowed such hitchhiking without authority, the employee driver/user and the employee hitchhiker shall all be liable.	1-day suspension	3-day suspension	5-day suspension	15 calendar days suspension
2. Parking one's car or motorized vehicle within the Company compound in prohibited or no parking zone.	Reprimand	1-day suspension	3-day suspension	5-day suspension
3. Driving recklessly and exceeding the speed limit using company vehicles regardless of place.	Reprimand	1-day suspension	5-day suspension	15-day suspension
4. Loading and transporting personal effects/cargo in company vehicles without any authority.	Reprimand	1-day suspension	3-day suspension	5-day suspension
5. Operating, without previous authority, or tinkering with Company properties, such as motor vehicles, operating machines, computer hardware, communication equipment and special tools or equipment.	3-day suspension	10-day suspension	15 calendar day suspension	Dismissal
6. Failure by the operator, driver or user to report immediately any damage to or defects of Company properties.	1-day suspension	3-day suspension	5-day suspension	15 calendar day suspension
7. Sharing of access privileges (e.g. System log-on, log-on user I.D., and the like).	Reprimand to dismissal, depending upon the gravity of the offense.			
8. Unauthorized use, lending or improper care of Company property.	Reprimand to dismissal, depending upon the gravity of the offense.			

Section Nine(9)

Hiring and Assignment of Relatives

The following acts shall constitute violation of this section:

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
1. Intentional non-disclosure of relatives within 3rd degree of consanguinity or affinity employed in the Company upon application for employment.	Suspension to dismissal, depending upon the gravity of the offense.			
2. No person shall be hired if he/she already has a total of two (2) relatives in the company within the 3rd civil degree of consanguinity or affinity, including first cousins.	Reprimand	1-day suspension	3-day suspension	5-day suspension

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Section Ten (10)

Voluntary Separation

The following act shall constitute violation of this section:

	<i>First</i>	<i>Second</i>	<i>Third</i>	<i>Fourth</i>
1. Failure on the part of an employee voluntarily separating from the company to serve a 30-day advance written notice and to continue working during the said period.	Dismissal			

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Section Eleven (11)

General Provision

1. The penalties for repeated violations of the same provision of this Code shall be higher than the penalty for the latest violation. The 12-month limitation period for repeat violations shall only apply to Attendance and Punctuality.
2. If at the time of the commission of the latest offense, the employee has previously violated at least two (2) other separate rules embraced in this Code or other promulgated Company work rules, all committed within 12-month period, the latest offense shall be punishable by the next higher step or degree of the penalty prescribed for the said offense.

3. Where the fourth violation of the same provision or rule is punishable by a penalty less than dismissal, the fifth and subsequent violations, if committed within 12-month period, shall be meted out a more drastic penalty including that of dismissal.
4. When a single act constitutes two or more offenses under this Code, when an offense is a necessary means for committing the other, the penalty for the more/most serious offense shall be imposed.
5. Any act, conduct or behavior prejudicial to the interests of the Company, but not specifically included in this Code shall be punishable, the penalty to be imposed depending upon the gravity of the offense.
6. The proper penalty provided for in this Code shall be implemented as follows:
 - A. Penalties below dismissal shall be recommended by the immediate superior (at least Team Leader/Supervisor level) and approved by the next level Head.
 - B. The penalty of dismissal shall be recommended by the office manager concerned and elevated up to the Management Disciplinary Committee (MDC).
7. All disciplinary actions shall be recorded in the employee's 201 file.
8. Any violations to his Code shall remain in the employee's records even after rehired.
9. All Team Leads / Supervisors and Office Heads shall ensure that the due process is given to employees charged with an offense.
10. A verbal warning may be made first before a penalty is imposed for light offenses and shall not be considered a penalty nor become part of the employee's 201 record.
11. The Office Head may place the employee under preventive suspension pending the result of the investigation IF the penalty provided for the offense involves possible dismissal and the employee's continued presence at work poses a serious and imminent threat to the company or to his co-employees.
12. The impossible penalty in a particular case may be reduced or increased upon the recommendation of the Office Head concerned, with the approval of the Group Head.
13. An employee under suspension or preventive suspension shall not be allowed to enter company premises and use company facilities during the period covered by the suspension, which includes his rest/off days. The employee may only be allowed to do so for official or business purposes, but he shall be escorted by Security.
14. Suspension penalties shall be counted as working days unless otherwise specified as calendar days.

Section Twelve (12)

Compliance and Enforcement

1. Corporate Labor Relations Office shall be responsible for the review and/or amendment of this Code, if necessary.
2. All questions regarding the enforcement and application of this Code shall be submitted to Corporate Labor Relations Office for appropriate action.
3. Team Leaders / Supervisors and Office Heads shall have the responsibility of ensuring compliance and enforcement of this Code.

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Section Thirteen (13)

Effectivity

1. This code shall take effect August 1, 2022 and supersedes the Company Code on Employee Discipline dated December 1, 1980 and all other previously promulgated Company rules and regulations inconsistent with the provisions of this Code.
2. This Code shall be reviewed every five (5) years or whenever.

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Annex A

Penalty for Damages or Injuries

Cost of Damage or Injury	1st Offense	2nd Offense	3rd Offense	4th Offense	5th Offense
Below P10,000	Reprimand	3-day Suspension	5-day Suspension	10-day Suspension	20-calendar day Suspension
P10,000 to P50,000	3-day Suspension	5-day Suspension	10-day Suspension	20-calendar day Suspension	Dismissal
Above P50,000 to P100,000	5-day Suspension	10-day Suspension	20-calendar day Suspension	Dismissal	
Above P100,000 to P250,000	10-day Suspension	20-calendar day Suspension	Dismissal		
Above P250,000 to P500,000	20-calendar day suspension	Dismissal			
Above P500,000 or Death	Dismissal				

NOTE: In addition to the penalty herein provided, the employee may be made to pay for the cost incurred in the damaged/lost item or injury, as the case maybe.

Undertaking

I have received a copy of the Code on Right Employee Ethics and Discipline (CREED) and I make a commitment to read and understand its provisions.

_____ day of _____, 20_____.

Printed Name & Signature



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